

15. S-PR-0014079 In Re the William E. Lauritsen Liv Trust

Petition to determine trust property is recommended for approval as prayed.

16. S-PR-0014081 In Re the Estate of Dutt, Brahm

Missing sufficient notice of hearing, service of notice of hearing, and publication for petition to administer estate. Notice of hearing as filed, served, and published relates only to a July 17 hearing that has been rescheduled by the court, rendering such notice ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated June 1. New notice, service (or waiver(s)), and publication are needed.

17. S-PR-0014082 In Re the Phillip S. Casebolt and Ethel M. Casebolt Rev Trust

Calendar notes are not yet available for this matter. Please check back for updated notes.

18. S-PR-0014083 In Re the Estate of Gibson, Robert

Appearance is required for hearing on petition to determine interest in insurance proceeds.

Missing sufficient service of notice of hearing. Personal representative of the estate of Robert Gibson or other successor(s) to decedent must be served. Nothing in the petition establishes that the estate of decedent Robert Gibson is being administered in any jurisdiction. Service to decedent's minor children is insufficient under Prob.C. § 851(a)(2) (and compare C.R.C. 7.51(a)(1)-(2) & (d)) because petitioner has not been appointed fiduciary for minors in any capacity. Petitioner cannot be appointed guardian at litem in this proceeding because she has a direct conflict of interest with them.

Points and authorities needed: petitioner does not show how § 850 relief is available where neither decedent nor the estate holds, has held, or claims any interest in the disputed proceeds.

Petitioner response is needed: petitioner provides insufficient information concerning the dissolution action in Sacramento County Superior Court. Petitioner alleges said action "is still pending," suggesting said court previously granted a status-only dissolution decree pursuant to Fam.C. § 2337. If that occurred, the court was required to "expressly reserve jurisdiction for later determination of all other pending issues." *Id.* at subdiv. (f). Petitioner's claim that decedent violated ATROs and she is entitled to the proceeds of his life insurance policy appears to fall within "all other pending issues." Accordingly, the petition here provides insufficient information to determine whether petitioner's claim can be heard in this court.